

STATE OF NEW YORK

10224--A

IN SENATE

May 7, 2026

Introduced by Sens. KRUEGER, LIU -- read twice and ordered printed, and when printed to be committed to the Committee on Codes -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the penal law, in relation to closing the patron exclusion in the definition of advancing prostitution and expanding the definition of patronizing a person for prostitution to include anything of value

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Short title. This act shall be known and may be cited as
2 the "sex trafficking accountability act".

3 § 2. Section 230.02 of the penal law, as amended by section 627 of the
4 laws of 1978, the section heading and subdivision 1 as amended by chap-
5 ter 368 of the laws of 2015, is amended to read as follows:

6 § 230.02 Patronizing a person for prostitution; definitions.

7 1. A person patronizes a person for prostitution when:

8 (a) Pursuant to a prior understanding, [~~he or she~~] such person pays a
9 fee, or anything of value, to another person as compensation for such
10 person or a third person having engaged in sexual conduct with [~~him or~~
11 ~~her~~] such principal person; or

12 (b) [~~He or she~~] Such person pays or agrees to pay a fee, or anything
13 of value, to another person pursuant to an understanding that in return
14 therefor such person or a third person will engage in sexual conduct
15 with [~~him or her~~] such principal person; or

16 (c) [~~He or she~~] Such person solicits or requests another person to
17 engage in sexual conduct with [~~him or her~~] such principal person in
18 return for a fee, or anything of value.

19 2. As used in this article[~~7~~]:

20 (a) [~~"person~~] "Person who is patronized" means the person with whom
21 the defendant engaged in sexual conduct or was to have engaged in sexual
22 conduct pursuant to the understanding, or the person who was solicited
23 or requested by the defendant to engage in sexual conduct.

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[~~-~~] is old law to be omitted.

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1 (b) "Prostitution" means the act of engaging in or agreeing to engage
2 in sexual conduct with another person in return for a fee or anything of
3 value that is given or received by a person.

4 § 3. Section 230.15 of the penal law, subdivisions 1 and 2 as amended
5 by chapter 368 of the laws of 2015, is amended to read as follows:

6 § 230.15 Promoting prostitution; definitions of terms.

7 The following definitions are applicable to this article:

8 1. "Advance prostitution." A person "advances prostitution" when,
9 acting other than as a person in prostitution [~~or as a patron thereof~~],
10 [~~he or she~~] such person knowingly causes or aids a person to commit or
11 engage in prostitution, procures or solicits patrons for prostitution,
12 provides persons or premises for prostitution purposes, operates or
13 assists in the operation of a house of prostitution or a prostitution
14 enterprise, or engages in any other conduct designed to institute, aid
15 or facilitate an act or enterprise of prostitution.

16 2. "Profit from prostitution." A person "profits from prostitution"
17 when, acting other than as a person in prostitution receiving compen-
18 sation for personally rendered prostitution services, [~~he or she~~] such
19 person accepts or receives money or other property pursuant to an agree-
20 ment or understanding with any person whereby [~~he or she~~] such principal
21 person participates or is to participate in the proceeds of prostitution
22 activity.

23 3. "Prostitution." means the act of engaging in or agreeing to engage
24 in sexual conduct with another person in return for a fee or anything of
25 value that is given or received by a person.

26 § 4. Section 230.34-a of the penal law, as added by chapter 189 of the
27 laws of 2018, is amended to read as follows:

28 § 230.34-a Sex trafficking of a child.

29 1. A person is guilty of sex trafficking of a child when [~~he or she~~]
30 such person, being twenty-one years old or more, intentionally advances
31 or profits from prostitution of another person [~~and such person~~] who is
32 a child less than eighteen years old. Knowledge by the defendant of the
33 age of such child is not an element of this offense and it is not a
34 defense to a prosecution therefor that the defendant did not know the
35 age of the child or believed such age to be eighteen or over.

36 2. For purposes of this section:

37 (a) A person "advances prostitution" when, acting other than as a
38 person in prostitution [~~or as a patron thereof~~], and with intent to
39 cause prostitution, [~~he or she~~] such person directly engages in conduct
40 that facilitates an act or enterprise of prostitution.

41 (b) A person "profits from prostitution" when, acting other than as a
42 person in prostitution receiving compensation for personally rendered
43 prostitution services, and with intent to facilitate prostitution, [~~he~~
44 ~~or she~~] such person accepts or receives money or other property pursuant
45 to an agreement or understanding with any person whereby [~~he or she~~]
46 such person participates in the proceeds of prostitution activity.

47 Sex trafficking of a child is a class B felony.

48 § 5. This act shall take effect immediately.